
Case	Title / Nature of Case
09:00 AM	
23-CIV-03337	KARLA CUELLAR VS. WEBCOR CONSTRUCTION, ET AL.
LINE 1	
KARLA CUELLAR WEBCOR BUILDERS, INC.	JOSHUA D. WHITE BRIAN FEATHERSTUN

DEFENDANT: WEBCOR BUILDERS, INC.'S MOTION FOR TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, EVIDENTIARY AND MONETARY SANCTIONS FOR DISCOVERY ABUSE AND WILLFUL VIOLATION OF A COURT ORDER

TENTATIVE RULING:

Defendant Webcor Construction has moved for terminating sanctions or, alternatively, evidentiary and monetary sanctions, against Plaintiff Karla Cuellar.

Defendant's motion for terminating sanctions or, alternatively, evidentiary sanctions, is DENIED.

Defendant's motion for monetary sanctions is GRANTED.

Further, the Court ORDERS Plaintiff to attend and complete her deposition within fourteen (14) days of receiving notice of this order.

BACKGROUND

Beginning in February of 2026, Defendant has been attempting to take Plaintiff's deposition so that it could timely prepare and file its motion for summary judgment. (Featherstun Decl., ¶ 6.) Plaintiff refused to appear for multiple properly noticed depositions in February and March of 2026, without serving any objections or seeking a protective order. (*Id.*, at ¶ 7.) In March, Defendant sought an ex parte order compelling Plaintiff's attendance and execution of her read and sign errata within three days to preserve the trial calendar at that time. (*Id.*, at ¶ 8.) The Court granted that ex parte on March 12, 2026, ordering Plaintiff to appear on March 26, 2026. (*Ibid.*; *See Order Granting Ex Parte Motion to Compel*, March 12, 2026.)

In direct violation of this Court's order, Plaintiff failed to appear for her deposition on March 26, 2026. (Featherstun Decl., ¶ 12.) Defendant again sought ex-parte relief compelling Plaintiff's attendance. The Court again granted Defendant's unopposed ex-parte motion, continuing the trial and all associated pre-trial deadlines and ordering Plaintiff to appear for deposition within 45 days. (*Id.*, at ¶ 14; *See Order Granting Ex Parte Motion to Compel*, April 2, 2026.)

Plaintiff appeared at a noticed deposition on May 14, 2026, within the 45-day period ordered by this Court. (Featherstun Reply Decl., ¶ 3.) Leading up to the deposition, Plaintiff had informed Defendant that she needed a Spanish language interpreter at the deposition. (*Id.*, at ¶ 2.) Less than two hours into the deposition, Plaintiff began disputing the accuracy of the court-certified interpreter's translations. (*Id.*, at ¶ 4, Ex. A, Deposition Transcript, 41:3 – 44:5.) Defendant asked Plaintiff to specifically identify the disputed portions of the translation. (*Id.*, at ¶ 5, Ex. A., 41:13-42:4; 43:1-16, 50:16-51:21.) Plaintiff identified, "when I said I thought that he was judging me," as a disputed portion of the translation, but otherwise did not provide any examples of translation disputes. (*Id.*, Ex. A, 44:11-12; 45:10 – 50:1.)

The parties agreed to leave the deposition open and continue it to a date within the next 30 days. (*Id.*, at ¶ 8, Ex. A, 50:10 – 52:17.) Plaintiff's counsel agreed to provide said date by May 18, 2026. (*Ibid.*) Plaintiff failed to do so. (*Id.*, at ¶ 9, Ex. D, Email Correspondence re: Continued Deposition Dates.) On May 19, Defendant served Plaintiff with a deposition notice for June 3, 2026, while offering five later dates between June 4 to June 12 as alternative dates that could be accommodated upon Plaintiff's request. (*Id.*, at ¶ 10, Exh. D, E.) Two days before the deposition, Defendant sent a courtesy reminder email to confirm attendance, to which Plaintiff's counsel responded that Plaintiff would not be attending the noticed deposition. (*Id.*, at ¶ 11, Ex. D.) Plaintiff did not timely serve any objections or obtain a protective order. (*Ibid.*) On June 3, 2026, Plaintiff did not appear for her noticed deposition and Defendant took a non-appearance on the record. (*Id.*, at ¶ 13, Ex. G., Non-Appearance Dep. Transcript.)

On May 27, 2026, Defendant sent Plaintiff a copy of the May 14, 2026, deposition audio recording and the deposition transcript, and asked Plaintiff to identify the alleged translation errors by June 2, 2026. (*Id.*, at ¶ 7, Ex. C, Email Correspondence re: Disputed Translations.) Plaintiff did not respond. (*Ibid.*) The head of the interpreter's agency reviewed the audio from the deposition and found no translation inconsistencies with the deposition transcript. (*Id.*, at ¶ 6, Ex. B, Declaration of Vivien Nichols.)

ANALYSIS

Terminating Sanctions

Here, Plaintiff previously failed to comply with a court order compelling her attendance at a deposition scheduled for March 26, 2026. This has never been explained, and is inexcusable. On April 2, 2026, this Court granted Defendant's ex-parte motion to compel Plaintiff's deposition once more, ordering that Plaintiff appear for her deposition within 45 days.

After the Court's second order, Plaintiff appeared for a noticed deposition on May 14, 2026 – within the 45-day deadline set by the Court. However, during the deposition, Plaintiff asserted that that court-certified Spanish interpreter was not accurately translating her testimony. The parties agreed to leave the deposition open and continue it to a date within the next 30 days. Plaintiff's counsel agreed to provide said date by May 18, 2026. Plaintiff failed to do so.

On May 19, Defendant served a deposition notice for June 3, 2026, while offering five later dates between June 4 to June 12 as alternative dates that could be accommodated upon Plaintiff's request. Two days before the deposition, Defendant sent a courtesy reminder email to confirm attendance, to which Plaintiff's counsel responded that Plaintiff would not be attending the noticed deposition. Plaintiff did not timely serve any objections or obtain a protective order.

Plaintiff unquestionably failed to comply with the Court's first order requiring her attendance at the March 26, 2026 deposition. The Court also finds that Plaintiff failed to comply with the Court's second order compelling her deposition ultimately noticed for May 14, 2026. It is arguable that Plaintiff then obstructed the deposition, as she alleged that the interpreter's translations were inaccurate but refused to provide specific examples of the inaccuracies, both during and after the deposition. Even assuming Plaintiff did not obstruct the deposition, she nonetheless failed to subsequently appear – and failed to even provide dates of availability – after the parties expressly agreed to continue the deposition to date within 30 days.

The record shows a pattern of Plaintiff failing to appear for noticed depositions, including when appearance is ordered by the Court. Plaintiff is clearly abusing the discovery process. However, the Court finds that the record does not yet show that lesser sanctions would be ineffective. Indeed, lesser sanctions, such as monetary sanctions, have not yet been imposed against Plaintiff.

Notably, Defendant's cases cited in support of its request for terminating sanctions overwhelmingly involve monetary sanctions being imposed prior to terminating sanctions. (*See, e.g., Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1092-93 [imposing monetary sanctions five times]; *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 703-04 [imposing monetary sanction, then later citing party's failure to pay monetary sanction to support conclusion that "there's no sanction that is going to result in [the PMQ deposition]."]; *Moofly Prods., LLC v. Favila* (2020) 46 Cal.App.5th 1, 6 [court imposed monetary sanctions prior to terminating sanctions]; *Liberty Mut. Fire Ins. Co. v. LcL Adm'rs, Inc.* (2008) 163 Cal.App.4th 1093, 1105 [same]; *Parker v. Wolters Kluwer United States, Inc.* (2007) 149 Cal. App. 4th 285, 289 [same]; *Collisson & Kaplan v. Hartunian* (1994) 21 Cal.App.4th 1611, 1614-15 [same].)

Defendant's request for terminating sanctions is DENIED.

Evidentiary Sanctions

"The court may impose an evidence sanction by an order prohibiting any party engaging in the misuse of the discovery process from introducing designated matters into evidence." (Code Civ. Proc., § 2023.030, subd. (c).)

Discovery sanctions must be proportionate to the discovery violation and tailored to remedy the specific harm caused by the withheld discovery:

Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would

otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct

(*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) “The rule that a sanction order cannot go further than is necessary to accomplish the purpose of discovery . . . is rooted in the concept of constitutional due process.” (*Newland v. Superior Court* (1995) 40 Cal.App.4th 608, 613.)

Defendant broadly requests an evidentiary sanction prohibiting Plaintiff from introducing “any testimony in this case – whether by declaration or otherwise – to create purported disputes of fact.” (MPA, 14:25-27; *See also*, Reply, 10:10-13.) Defendant fails to explain how such a broad request is proportionate to the discovery abuse and tailored to remedy the specific harm caused, especially when Defendant will still be able to complete Plaintiff’s deposition. Section 2023.030(c) allows courts to impose evidentiary sanctions prohibiting the introduction “designated matters” into evidence. The Court finds that a blanket evidentiary sanction prohibiting the use of *any* testimony to create triable issue of facts does not adequately designate matters to be excluded and is tantamount to a terminating sanction. At this point, the request is premature and not warranted.

Defendant’s request for evidentiary sanctions is DENIED.

Monetary Sanctions

Monetary sanctions may be imposed when a party or attorney engages in misuse of the discovery process, including “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010.) Motions for monetary sanctions for discovery abuses may be made after an underlying motion to compel is litigated. (*London v. Dri-Honing Corp.* (2004) 117 Cal.App.4th 999, 1008-1009.)

Defendant requests monetary sanctions for attorney’s fees and costs it incurred because of Plaintiff’s discovery misconduct. Specifically, Defendant requests sanctions for attorney’s fees for time spent preparing and appearing for the two ex parte motions compelling Plaintiff’s deposition, the costs associated with filing those motions, and fees and costs associated with this instant motion. (Featherstun Decl., ¶¶ 20-22.) Defendant seeks to recover for eight (8) hours of work on the first ex parte motion and seven and one-half (7.5) hours of work on the second ex parte motion. (*Id.*, at ¶ 20.) Defendant seek to recover for fifteen (15) hours of work on the instant motion for terminating, evidentiary, and monetary sanctions, and the reply. (*Id.*, at ¶ 21.) The stated rates for the attorneys who performed the work ranges from \$950 per hour to \$2,250 per hour. (*Id.*, at ¶¶ 20-21.) Total fees that could be sought are nearly \$45,000.00. (*i.*, at ¶ 22.) However, Defendant only requests sanctions up to \$20,000. (*Id.*, at ¶ 22.) \$20,000 for 30.5 hours of work amounts to a rate of \$656 per hour.

This court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]);

Reynolds v. Ford Motor Company (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.” (citations omitted)].).

On this motion the Court finds this request reasonable, as to the hourly rate and time spent.

Defendant’s request for monetary sanctions of \$20,000.00 against Plaintiff and her counsel of record, jointly and severally, is GRANTED.

Plaintiff’s Deposition

Defendant’s effort to depose the Plaintiff, should not be this difficult. This has been discussed at length with all counsel during past Ex Parte hearings. Plaintiff filed this case and is required to comply with the Discovery Act, and to date, she has instead been obstructing her deposition at every opportunity. Plaintiff is on notice that while evidentiary or terminating sanctions are not being awarded today, they may be highly appropriate the next time the Court has to hear a motion based on further obstructionist tactics.

The Court ORDERS that Plaintiff appear at and complete her deposition within 14 days of notice of this order, unless the parties agree otherwise. Failure to comply with this order may result in evidentiary and/or terminating sanctions.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court’s signature a written order consistent with the Court’s ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling” (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

24-CIV-00311 A.V. VS. SAN BRUNO PARK SCHOOL DISTRICT, ET AL.
LINE 2

A.V.
JEREMY YEH

KHALDOUN A. BAGHDADI
CHARLES R. ROE

CASE MANAGEMENT AND TRIAL SETTING CONFERENCE (Joined with the vacated
Motion for Trial Preference)

TENTATIVE RULING:

All counsel to appear to set Trial and related dates, Zoom is allowed, using the Courtroom L
Zoom credentials.
